

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS----- X
RICARDO FAUSTIN,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE LEON BATSON,
Tax No. 938037, LIEUTENANT Yael MAGORI, Tax No.
942099, POLICE OFFICER MARC FONTANA, Tax No.
951741, POLICE OFFICER EDWARD O'BRIEN, Tax No.
961548, and POLICE OFFICERS JOHN DOES #s 1-10,Defendants.
----- X**SUMMONS**

Index No.:

The Basis of Venue is:
Location of IncidentPlaintiff designates Kings
County as the place of trial.**To the above-named Defendants:**

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
June 28, 2023

Yours, etc.

David Hazan

JACOBS & HAZAN, PLLC.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: THE CITY OF NEW YORK, NYC Office of the Corporation Counsel, 100 Church Street,
New York, New York 10007
POLICE LEON BATSON, Tax No. 938037, 70th Precinct
LIEUTENANT Yael MAGORI, Tax No. 942099, Fleet Services Division
POLICE OFFICER MARC FONTANA, Tax No. 951741, 70th Precinct
POLICE OFFICER EDWARD O'BRIEN, Tax No. 961548, Warrant Section

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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RICARDO FAUSTIN,

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-against-

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No. 951741, POLICE OFFICER EDWARD O'BRIEN,
Tax No. 961548, and POLICE OFFICERS JOHN DOES #s
1-10,

Defendants.

----- X

INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff RICARDO FAUSTIN, by his attorneys, Jacobs & Hazan, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on June 28, 2020, at approximately 5:00 pm plaintiff was lawfully present at New York Community Hospital located at 2525 Kings Hwy, Brooklyn, New York when defendants unlawfully searched, falsely arrested and subjected plaintiff to the use of excessive force, without probable cause or legal justification. The defendants unlawfully evicted plaintiff from his apartment when they falsely arrested him and charged him with trespassing into the apartment where they knew he resided for the previous 7 months. The defendants unlawfully seized plaintiff's motor vehicle and unlawfully searched the motor vehicle at the precinct. Defendants did not recover any illegal drugs, weapons, or contraband pursuant to the unlawful searches of his person and his vehicle. Plaintiff was transported to the 70th Precinct against his will, whereat he was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours. While claimant was already detained at the 70th precinct, the defendants unlawfully entered and searched the apartment where plaintiff resided, but where the officers alleged, he was trespassing. The officers entered and searched the location, without a warrant, plaintiff's consent, or any legal justification. The officers falsely allege that they recovered a firearm from plaintiff's apartment. At no time relevant herein did plaintiff possess a firearm in his apartment, nor did he trespass into the apartment where he resided. Based upon the incomplete, false, and misleading information provided to the Kings

County District Attorney's Office by the defendants, plaintiff was maliciously prosecuted and arraigned in Kings County Criminal Court on June 29, 2020, at approximately 11:00 PM, approximately 30 hours after he was initially arrested by the police officers. At arraignment plaintiff was falsely charged with Criminal Trespass, Harassment and Criminal Possession of a Weapon. Plaintiff was released from custody on his own recognizance at arraignment. Plaintiff was required to make approximately 5 appearances in Kings County Criminal Court and endured a criminal prosecution that lasted for approximately 1 year and 3 months before the Court granted a motion to dismiss the charges on September 17, 2021, and dismissed and sealed the charges in their entirety. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to believe he committed a crime.

PARTIES

1. Plaintiff RICARDO FAUSTIN is a resident of the state of New York.
2. Defendant POLICE LEON BATSON, Tax No. 938037, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
3. Defendant POLICE LEON BATSON, Tax No. 938037, was at all times relevant herein, assigned to the to the 75th Precinct.
4. Defendant POLICE LEON BATSON, Tax No. 938037, is being sued in his individual and official capacity.
5. Defendant LIEUTENANT YAEL MAGORI, Tax No. 942099, is and at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
6. Defendant LIEUTENANT YAEL MAGORI, Tax No. 942099, was at all times relevant herein, assigned to the 70th Precinct and she is now assigned to the Fleet Services Division.
7. Defendant LIEUTENANT YAEL MAGORI, Tax No. 942099, is being sued in his individual and official capacity.
8. Defendant POLICE OFFICER MARC FONTANA, Tax No. 951741, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
9. Defendant POLICE OFFICER MARC FONTANA, Tax No. 951741, is and was at all times relevant herein, assigned to the 70th Precinct.
10. Defendant POLICE OFFICER MARC FONTANA, Tax No. 951741, is being sued in his individual and official capacity.

11. Defendant POLICE OFFICER EDWARD O'BRIEN, Tax No. 961548, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

12. Defendant POLICE OFFICER EDWARD O'BRIEN, Tax No. 961548, was at all times relevant herein, assigned to the 70th Precinct and is presently assigned to the Warrants Section.

13. Defendant POLICE OFFICER EDWARD O'BRIEN, Tax No. 961548, is being sued in his individual and official capacity.

14. Defendants New York City Police Officers John Does #s 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

15. Defendants New York City Police Officers John Does #s 1-10 are being sued in their individual and official capacities.

16. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees, and agents of the New York City Police Department.

17. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

18. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

19. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

20. By way of background, in June 2020 plaintiff had been renting an apartment located at 710 East 86th Street, Brooklyn, New York since November 2019.

21. Plaintiff paid the landlord \$700 per month to rent the apartment.

22. Plaintiff's landlord rented the apartment from the owner of the building and subletted the apartment to plaintiff.

23. Upon information and belief, the landlord profited each month from the money she received from plaintiff's rent money.

24. Upon information and belief, plaintiff's landlord also received money through Social Security Disability to pay for her rent, and individuals receiving funds from Social Security Disability are not permitted to rent out the apartment or a portion of the apartment that was being paid for with Social Security Disability money, for profit.

25. Toward the end of May 2020, the landlord told plaintiff that the government was investigating her because she was renting the apartment to him.

26. The landlord told plaintiff that he needed to move out of the apartment because she could not risk losing her rental assistance from Social Security Disability or the apartment.

27. Plaintiff agreed to move out of the apartment, but he told the landlord that he needed a short time to find a new place to live.

28. At the time of the incident that gives rise to this lawsuit, plaintiff had lived in the apartment for more than 7 months.

29. However, plaintiff was unable to find a new place to live fast enough for his landlord, and his landlord arranged for the defendant police officers to have plaintiff unlawfully removed and evicted from the apartment.

30. On the afternoon of June 28, 2020, plaintiff was lawfully spending time with his 8-year-old daughter in his apartment located at 710 East 86th Street at which time his landlord who lived in the building called 911 requesting an ambulance because she allegedly was having a seizure.

31. An ambulance arrived at the location and plaintiff's landlord was removed from the location and taken to New York Community Hospital located at 2525 Kings Hwy, Brooklyn, New York 11229 via ambulance.

32. According to police documents, the landlord falsely informed the police officers who accompanied her to the hospital that between May 16, 2020, and June 28, 2020, she had repeatedly asked plaintiff to leave the apartment and each time she asked him to leave he became very angry and threatened her.

33. Plaintiff's landlord admitted as part of her complaint that plaintiff lived in the apartment for more than 30 days, and he actually had lived there and paid rent for over 7 months, since November 2019.

34. Additionally, the landlord told the defendant police officers that she would give them access to plaintiff's apartment so that they could search for anything illegal he had within his apartment.

35. The defendant police officers knew that plaintiff's landlord did not have legal authority to give the officers authority to search plaintiff's apartment, without a warrant.

36. The police officers attempted to lure plaintiff out of his home so that they could arrest him for criminal trespass into his home and illegally evict him from his apartment.

37. Later that afternoon plaintiff received a telephone call from a female who said she was a Dr. at New York Community Hospital, but who he later learned was defendant Lieutenant Yael Magori.

38. Plaintiff was completely unaware that the female on the phone was actually defendant Lieutenant Yael Magori, pretending to be a Dr. at the hospital.

39. Defendant Lieutenant Magori pretended to be a doctor, and asked plaintiff to come to the hospital to sign some paperwork for his landlord so that she could get a CAT Scan.

40. Plaintiff told Lieutenant Magori that he did not have legal authority to do that for his landlord because he was just her tenant.

41. However, Lieutenant Magori asked plaintiff to come to the hospital to support his landlord.

42. Ultimately, plaintiff agreed to come to the hospital and sign whatever paperwork needed to be signed.

43. Plaintiff drove to New York Community Hospital at approximately 5:00 pm on June 28, 2020.

44. After plaintiff provided the receptionist at the hospital his landlord's name, he was almost immediately approached by the defendant NYPD officers, who proceeded to unlawfully handcuffed and falsely arrest plaintiff, without probable cause or legal justification.

45. The officers asked plaintiff for his consent for them to search the vehicle he drove to the hospital.

46. Plaintiff told the officers he did not consent to the search of his vehicle.

47. Nevertheless, the officers unlawfully seized plaintiff's vehicle, drove it to the 70th precinct and conducted a thorough, unlawful search of the vehicle where the officers were searching for drugs and weapons.

48. At no time relevant herein did the defendant police officers recover any illegal drugs, weapons or contraband from plaintiff's possession, custody, or control or from his vehicle.

49. According to the defendant police officers' paperwork, they arrested plaintiff for criminal trespassing into his apartment because his landlord wanted him removed from the apartment.

50. The defendant police officers arrested plaintiff for allegedly trespassing into his own apartment.

51. Plaintiff's landlord never brought eviction proceedings against plaintiff in Housing Court.

52. Instead, plaintiff's landlord told the defendant police officers that she had been asking plaintiff to leave the apartment for more than 30 days and he refused to leave.

53. Thus, the officers knew that plaintiff had lived in the apartment for more than 30 days and plaintiff also told the officers that he lived in the apartment and paid rent since November 2019.

54. Plaintiff was never served with a 72-hour Notice of Eviction to leave the apartment.

55. The defendant police officers lacked authority or probable cause to arrest plaintiff and charge him with trespassing into his own home.

56. In taking these actions the officers unlawfully evicted plaintiff from his apartment because these allegations also resulted in a full Order of Protection being issued against plaintiff at arraignment which ordered him to stay away from his apartment located at 710 East 86th Street, Brooklyn, New York and did not even provide him with a way to retrieve his property and belongings because the charge brought against him was Trespass, which means he had no authority to be at the location.

57. Consequently, as a result of this incident plaintiff lost all of his belongings and was homeless when he was released from custody at arraignment.

58. This caused plaintiff to suffer from an enormous amount of emotional stress and anxiety.

59. Plaintiff obeyed the Order of Protection, never went back to the apartment and has not seen the landlord since this incident.

60. After the officers falsely arrested plaintiff for allegedly trespassing in his own apartment, the officers unlawfully transported plaintiff against his will to the 70th Precinct whereat he was unlawfully searched, fingerprinted, photographed, and detained in a holding cell for many hours. At no time relevant herein did claimant commit a crime, nor did the officers have probable cause to accuse him of committing a crime.

61. Then, the defendant police officers unlawfully searched plaintiff's apartment, without a warrant.

62. The officers claim they had authority to search plaintiff's apartment because his landlord gave them authority to enter and search the apartment and according to the officers, plaintiff did not live there.

63. The defendant officers falsely allege they recovered a gun from the apartment when they unlawfully searched the apartment.

64. The defendant police officers charged plaintiff with Trespass and Criminal Possession of a Weapon, based upon their false allegation that they recovered a gun from the apartment pursuant to their search.

65. At no time relevant herein did plaintiff possess a firearm in the apartment and to the extent a gun was recovered it was not recovered from his belongings.

66. Importantly, plaintiff's DNA was not found on the gun recovered by the officers.

67. The defendant police officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting claimant and charging him with crimes.

68. The defendant officers told the DA's Office that plaintiff's landlord accused plaintiff of trespassing into her home from May 16, 2020, through June 28, 2020, but failed to inform the DA's Office that he was her tenant who had been living there since November 2019 and there were no Court Orders evicting plaintiff from his apartment.

69. Plaintiff was transported to Kings County Central Booking whereat the unlawful detention continued for many hours.

70. Based upon the false, misleading, and incomplete information provided to the DA's Office by the officers, plaintiff was maliciously prosecuted and arraigned in Kings County Criminal Court on June 29, 2020, at approximately 11:00 PM, approximately 30 hours after he was initially arrested by the police officers.

71. At arraignment plaintiff was falsely charged with Criminal Trespass, Harassment and Criminal Possession of a Weapon, without probable cause.

72. Plaintiff was released from custody on his own recognizance at arraignment.

73. Plaintiff was required to make approximately 5 appearances in Kings County Criminal Court and endured a criminal prosecution that lasted for approximately 1 year and 3

months before the Court granted a motion to dismiss the charges on September 17, 2021, and all charges were dismissed and sealed in their entirety,

74. The criminal prosecution terminated in plaintiff's favor on September 17, 2021.

75. At no time relevant herein did plaintiff commit a crime, nor did the officers have probable cause to accuse him of committing a crime.

76. The defendant officers provided the DA's Office with false, misleading, and incomplete evidence to support their purported basis for arresting plaintiff and charging him with crimes.

77. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the officers possess objective facts to establish probable cause to establish probable cause to believe he committed a crime.

78. Defendants fabricated the allegations made against plaintiff that were sworn to under the penalty of perjury in the criminal court complaint.

79. Defendants' unlawful and unconstitutional conduct caused plaintiff to endure being arrested for crimes he did not commit.

80. Moreover, plaintiff suffered extreme emotional distress from having to address the false charges brought against him in the criminal prosecution.

81. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

82. There have been hundreds of lawsuits and Notices of Claims filed with the City of New York, and complaints filed with the Civilian Complaint Review Board by members of the public alleging that NYPD police officers continue to engage in said unconstitutional and unlawful behavior, but the NYPD has not taken reasonable steps to ensure that its officers follow the NYPD's current written policies and training regarding these issues and has not retrained or disciplined its officers for continuing to behave in an unlawful and unconstitutional manner toward members of the public under these circumstances, even when the officers admit to engaging in unconstitutional behavior like the officers did in the underlying incident involving plaintiff in this case.

83. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently pervasively continue to unlawfully and unconstitutionally stop, question, frisk, search and falsely arrest members of the public without probable cause.

84. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful stop, question, frisk, search, false arrest, and false imprisonment because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully stop, question, frisk, search and falsely arrest members of the public without probable cause.

85. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior for decades and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

86. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

87. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

88. The unlawful stop, question, frisk, search, false arrest and false imprisonment, malicious prosecution, excessive force, and denial of due process/ right to a fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth and Fourteenth Amendment Rights

89. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 88 with the same force and effect as if more fully set forth at length herein.

90. The individually named police officer defendants while acting in concert and within the scope of their authority, unlawfully seized and searched claimant's vehicle and claimant's apartment and caused plaintiff to be unlawfully stopped, questioned, frisked, searched, seized, falsely arrested, falsely imprisoned, and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

91. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

93. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question and Frisk

96. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 95 with the same force and effect as if more fully set forth at length herein.

97. The illegal approach, pursuit, stop, question, and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

98. The conduct of defendants in stopping, questioning, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

99. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

100. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

101. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional, and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

102. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 101 with the same force and effect as if more fully set forth at length herein.

103. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

104. Defendants lacked probable cause to search plaintiff.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

108. Plaintiff repeats and realleges paragraphs 1 through 107 as if fully set forth herein.

109. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York, and New York State common law.

110. Defendants commenced and continued a criminal proceeding against plaintiff.

111. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

112. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

113. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Violation of Plaintiff's Fifth Amendment and Fourteenth Amendment Rights Denial of Due Process/ Right to a Fair Trial

115. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 114 with the same force and effect as if fully set forth herein.

116. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

117. Defendants filled out false and misleading police reports and a criminal court complaint and forwarded them to the Kings County Criminal Court.

118. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process/ a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

119. As a result of the foregoing, plaintiff sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings, and deprivation of his constitutional rights.

120. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SEVENTH CAUSE OF ACTION

Failure to Intervene

121. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 120 with the same force and effect as if more fully set forth at length herein.

122. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

123. Defendants failed to intervene to prevent the unlawful conduct described herein.

124. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

125. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

EIGHTH CAUSE OF ACTION

Municipal Liability under 42 U.S.C. § 1983 for Policy of Deliberate Indifference When NYPD Officers Violate the Fourth, Fifth and Fourteenth Amendments to the United States Constitution

126. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. Plaintiff was unlawfully searched, interrogated, frisked, falsely arrested plaintiff, maliciously prosecuted, denied the right to due process, and subjected to the use of excessive force without an objective factual legal basis to seize, arrest and prosecute plaintiff pursuant to an unconstitutional policy and practice of the NYPD that is deliberately indifferent to the fact that many NYPD officers, including defendants engage in this type of misconduct on a regular basis without being disciplined and/ or retrained.

128. There is a policy, practice, or custom within the New York City Police Department, wherein New York City Police Officers illegally frisk, search, interrogate, falsely

arrest, and fabricate evidence, without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance.

129. The NYPD and defendant City of New York are deliberately indifferent to the fact that its police officers persistently and pervasively continue to unlawfully and unconstitutionally violate the Fourth, Fifth, and Fourteenth Amendment Rights of members of the public.

130. Defendant City of New York is liable to plaintiff for the damages he suffered stemming from the unlawful frisk, search, interrogation, and false arrest of plaintiff because defendant City of New York is deliberately indifferent about its police officers' unlawful and unconstitutional behavior when NYPD officers unlawfully search, and falsely arrest members of the public when there is no factual basis to suspect the individual has committed a crime.

131. The City of New York has been deliberately indifferent about the fact that its police officers have been engaging in said unconstitutional behavior and the NYPD has not taken reasonable steps to ensure its police officers do not continue to engage in this unconstitutional behavior, through discipline or retraining police officers who engage in this behavior and violate the law and the Constitution of the United States.

132. The deliberate indifference by the NYPD and defendant City of New York towards its officers when they engage in such unlawful and unconstitutional behavior is the proximate cause of plaintiff's injuries because the officers knew there would not be any consequences for violating plaintiff's rights and engaging in the unlawful conduct since the City of New York and the NYPD are deliberately indifferent when NYPD officers behave in that manner.

133. As a result of defendant City of New York and the New York City Police Department's policy wherein New York City Police Officers illegally and unconstitutionally, search, and falsely arrest individuals without a specific, articulable factual basis supporting a reasonable suspicion or probable cause to believe the individual had violated any law or ordinance, and the New York City Police Department's deliberate indifference about the fact that New York City Police Officers routinely continue to conduct these searches, arrests, and criminal prosecutions, without reasonably articulable suspicion and/or probable cause, there is a pattern, policy, custom or practice of New York City Police Officers searching, falsely arresting and maliciously prosecuting individuals without a factual basis supporting a legal reason to do so.

134. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of defendant City of New York, which is forbidden by the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States.

135. The aforementioned customs, policies, usages, practices, procedures and rules devised, implemented, enforced, promoted, encouraged, and sanctioned by the City of New York, including but not limited to : (a) the failure to adequately and properly screen, train, and supervise New York City Police Officers; (b) the failure to properly and adequately monitor and discipline

New York City Police Officers; and (c) the overt and tactical encouragement and sanctioning of, and the failure to rectify, the New York City Police Departments suspicionless seizures, searches, arrests, and prosecutions.

136. The City of New York has acted with deliberate indifference to the Fourth and Fourteenth Amendment rights of plaintiff and other individuals. As a direct and proximate result of the acts and omissions of the City of New York, plaintiff has been deprived of her rights under the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution.

137. The foregoing customs, policies, usages, practices, procedures and rules of defendant City of New York and the New York City Police Department were the moving force behind the Constitutional violations suffered by plaintiff as alleged herein.

JURY DEMAND

138. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff RICARDO FAUSTIN demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest, and such other relief as is appropriate under the law. That the plaintiff recovers the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
June 28, 2023

By: David Hazan
DAVID M. HAZAN
JACOBS & HAZAN, PLLC
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein, I maintain my office.

DATED: New York, New York
June 28, 2023

David Hazan

DAVID M. HAZAN